

Abdul Salam Khan v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 15 July 2019 · Writ-C No. 22205 of 2019 · **Writ disposed; fresh cl. 6.5 objections; recovery stayed pending EE decision.**

HEADNOTE

A writ challenging a recovery citation for electricity dues, on the plea that an incorrect bill had been raised and objections remained undecided, was disposed of by relegating the consumer to fresh objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, with a direction to decide them by a speaking order and an interim stay of recovery.

FACTUAL SUMMARY

Abdul Salam Khan challenged a recovery citation dated 28 January 2019 for Rs. 84,797 as electricity dues. He contended that an incorrect bill had been raised and that, despite objections, recovery had issued without those objections being decided. Counsel for the distribution-licensee respondents submitted that the Executive Engineer would consider and decide the objections within a time fixed by the Court. The High Court treated the matter as a billing dispute and did not examine the bill on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objections-before-executive-engineer

HOLDING

Where a consumer challenges a recovery citation for electricity dues on the ground that an incorrect bill was raised and objections remain undecided, the writ is disposed of with liberty to file fresh objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer within two weeks; the Executive Engineer shall decide any such objection by a speaking order within one month; and recovery shall remain stayed for two months or until the objections are decided, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND VALIDITY OF THE RECOVERY CITATION DATED 28.01.2019

Left to the Executive Engineer on fresh Clause 6.5 objections; the Court did not examine the bill on merits. ¶ 1